

REVISED PENAL CODE (ACT NO. 3815)

In-Depth Legal Study Guide: Articles 1 to 10

Comprehensive Law School Reviewer & Conceptual Analysis

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ARTICLE 1: TIME WHEN ACT TAKES EFFECT

Text of the Law:

"This Code shall take effect on the first day of January, nineteen hundred and thirty-two."

Detailed Legal Breakdown

1. Date of Enactment vs. Date of Effectivity:

- **Enacted:** December 8, 1930 (approved by the Philippine Legislature).
- **Took Effect:** January 1, 1932 (gave more than a year of *vacatio legis* for judges, prosecutors, lawyers, and the citizenry to become familiar with the new codification replacing the Spanish Penal Code of 1870).

2. Cardinal Principle (*Lex Prospicit, Non Respicit*):

- A penal law operates prospectively. No act committed prior to January 1, 1932, could be punished under the Revised Penal Code (RPC) unless the provisions of the new Code were more favorable to the accused (Art. 22).

ARTICLE 2: APPLICATION OF ITS PROVISIONS

(Scope of Jurisdiction, Territoriality, and Extraterritoriality)

Text of the Law:

"Except as provided in the treaties and laws of preferential application, the provisions of this Code shall be enforced not only within the Philippine archipelago, including its atmosphere, its interior waters and maritime zone, but also outside of its jurisdiction, against those who:

- 1. Should commit an offense while on a Philippine ship or airship;*
- 2. Should forge or counterfeit any coin or currency note of the Philippine Islands or obligations and securities issued by the Government of the Philippine Islands;*
- 3. Should be liable for acts connected with the introduction into these islands of the obligations and securities mentioned in the preceding number;*
- 4. While being public officers or employees, should commit an offense in the exercise of their functions; or*
- 5. Should commit any of the crimes against national security and the law of nations, defined in Title One of Book Two of this Code."*

Detailed Legal Breakdown

1. General Principles of Criminal Law Evident in Article 2

- **Territoriality Principle:** Penal laws of the Philippines are enforceable only within its territory (land, air space, fluvial and maritime territory including the 12 nautical mile territorial sea and internal waters).
- **Exceptions to Territoriality (Extraterritorial Jurisdiction):** The five (5) enumerations in Article 2 allow the Philippines to prosecute crimes committed outside its territory because such crimes directly assault Philippine sovereignty, currency, public service integrity, or national security.
- **Exceptions to Generality Found in the Clause:**
 - *"Treaties":* (e.g., Visiting Forces Agreement [VFA], Enhanced Defense Cooperation Agreement [EDCA], diplomatic conventions).
 - *"Laws of Preferential Application":* (e.g., Republic Act No. 75 granting diplomatic immunity to foreign ambassadors and public ministers).

2. The Five Extraterritorial Exceptions (In-Depth)

1. Paragraph 1: Offenses aboard a Philippine Ship or Airship

- **Requirement:** The vessel or aircraft must be *registered with the Philippine Maritime Authority or Civil Aviation Authority* (carrying the Philippine flag).

- **Location:** It applies on the *high seas* or in *international airspace*.
- **Foreign Waters/Airspace Distinction:** If the vessel is within the territorial waters of a foreign country, international law applies two distinct rules:
 - **French Rule (Flag / Nationality Theory):** Crimes aboard a merchant vessel inside a foreign port are triable by the flag country *unless* they affect the peace, order, and public tranquility of the host port.
 - **English Rule (Territoriality Theory - FOLLOWED IN THE PHILIPPINES):** Crimes committed aboard a foreign merchant vessel within Philippine territorial waters are triable in the Philippines *unless* they involve merely internal discipline of the vessel. (*People v. Wong Cheng*, 46 Phil. 729; *U.S. v. Look Chaw*, 18 Phil. 573).

2. Paragraph 2: Forgery or Counterfeiting Philippine Currency/Securities

- Covers coins, treasury notes, bangko sentral notes, government bonds, and public securities.
- **Rationale:** Protects the financial integrity and economic stability of the Republic against transnational counterfeiting syndicates.

3. Paragraph 3: Introduction of Forged/Counterfeit Securities

- Penalizes anyone who introduces or imports forged Philippine currency/securities into the country, even if the actual forgery was executed by someone else abroad.

4. Paragraph 4: Crimes Committed by Public Officers in the Exercise of Their Functions

- **Scope:** Crimes such as Bribery (Arts. 210-211), Malversation of Public Funds (Art. 217), Direct/Indirect Infidelity in Custody of Documents (Arts. 226-228), and Falsification of Public Documents (Art. 171) committed by Philippine diplomatic, consular, or overseas public officers *while exercising official functions abroad*.
- **Note:** Purely private crimes committed by an officer abroad (e.g., ordinary physical injuries at a bar) are governed by the territorial laws of the host state, not Article 2(4).

5. Paragraph 5: Crimes Against National Security and the Law of Nations (Title 1, Book 2)

- Includes: Treason (Art. 114), Conspiracy and Proposal to Commit Treason (Art. 115), Espionage (Art. 117), Inciting to War or Giving Motives for Reprisals (Art. 118), Violation of Neutrality (Art. 119), Flight to Enemy's Country (Art. 121), and Piracy/Mutiny on the High Seas (Art. 122).
- **Universal Jurisdiction for Piracy:** Piracy is a crime against humanity (*hostes humani generis*); any sovereign state can arrest and try pirates regardless of where the piracy occurred on the high seas.

ARTICLE 3: DEFINITION OF FELONIES

(*Dolo vs. Culpa, Elements, Mistake of Fact*)

Text of the Law:

"Acts and omissions punishable by law are felonies (*delitos*).

Felonies are committed not only by means of deceit (*dolo*) but also by means of fault (*culpa*).

There is deceit when the act is performed with deliberate intent; and there is fault when the wrongful act results from imprudence, negligence, lack of foresight, or lack of skill."

Detailed Legal Breakdown

1. Terminology: Felonies, Offenses, Misdemeanors, Crimes

- **Felonies (*Delitos*)**: Acts or omissions punishable by the *Revised Penal Code*.
- **Offenses**: Violations punishable by *Special Penal Laws* (e.g., RA 9165, RA 9262).
- **Misdemeanors / Infractions**: Violations of municipal/city ordinances.
- **Crimes**: The generic umbrella term for any act or omission prohibited and penalized by public law.

2. Elements of a Felony in General

1. There must be an **act or omission** (external physical manifestation; mere thought or evil intent is not punishable).
2. The act or omission must be **punishable by the Revised Penal Code**.
3. The act is performed or omission incurred by means of **dolo (deceit/malice)** or **culpa (fault/negligence)**.

3. Intentional Felonies (*Dolo*) vs. Culpable Felonies (*Culpa*)

| Feature | Intentional Felony (*Dolo*) | Culpable Felony (*Culpa*) |

| :--- | :--- | :--- |

| **Mental State** | Malicious, deliberate, evil intent (*animus malus*) | No malicious intent; deficiency of action or perception |

| **Source** | Deceit (*Dolo*) | Fault (*Culpa*) |

| **Elements** | 1. **Freedom** (voluntariness)
2. **Intelligence** (capacity to know right from wrong)
3. **Intent** (purpose to use a particular means to effect a result) | 1. **Freedom**
2. **Intelligence**
3. **Imprudence/Negligence/Lack of foresight/Lack of skill** |

| **Modality** | Performed with conscious purpose to cause injury | Injury caused without intent due to deficiency in action/perception |

• **Imprudence vs. Negligence:**

- **Imprudence**: Deficiency of *action* (acting rashly, failure to take proper precautions; doing what ought not to be done).
- **Negligence**: Deficiency of *perception* (failure to pay proper attention; omitting to do what ought to be done).

4. Critical Doctrines Under Article 3

• **Mistake of Fact (*Ignorantia Facti Excusat*)**:

- **Rule**: An honest, non-negligent mistake of fact negates criminal intent (*dolo*). If the facts were as the actor believed them to be, the act would have been lawful.

- *Requisites (Ah Chong Rule - US v. Ah Chong, 15 Phil. 488):*
 1. The act done would have been lawful had the facts been as the accused believed them to be.
 2. The intention of the accused was lawful and free from evil intent.
 3. The mistake was not due to fault, gross negligence, or lack of foresight on the part of the accused.
- *Contrast with Mistake of Law (Ignorantia legis non excusat, Art. 3 Civil Code):* Ignorance of the law excuses no one from compliance therewith.
- **Intent vs. Motive:**
 - **Intent:** The purpose to use a particular means to effect a definite result (an essential element of *dolo*).
 - **Motive:** The moving power, reason, or personal desire that impels a person to act (not an element of a crime, but relevant when the identity of the perpetrator is in doubt or to determine the degree of criminality).
- **Mala In Se vs. Mala Prohibita:**
 - **Mala In Se:** Inherently immoral or wrong in their very nature (e.g., Murder, Theft, Rape). Criminal intent is essential; codified primarily under the RPC. Good faith is a valid defense.
 - **Mala Prohibita:** Acts prohibited solely by statutory law for public policy/welfare (e.g., illegal possession of firearms, violations of BP 22). Intent is immaterial; the only question is whether the statutory prohibition was voluntarily violated. Good faith is generally not a defense.

ARTICLE 4: CRIMINAL LIABILITY

(Proximate Cause, Praeter Intentionem, Error in Personae, Aberratio Ictus, Impossible Crimes)

Text of the Law:

"Criminal liability shall be incurred:

1. *By any person committing a felony (delito) although the wrongful act done be different from that which he intended.*
2. *By any person performing an act which would be an offense against persons or property, were it not for the inherent impossibility of its accomplishment or on account of the employment of inadequate or ineffectual means."*

Detailed Legal Breakdown

1. Paragraph 1: Proximate Cause and Transfer of Criminal Liability

- **Maxim:** *"El que es causa de la causa es causa del mal causado"* (He who is the cause of the cause is the cause of the evil caused).
- **Requisites for Liability under Art. 4, Par. 1:**
 1. An intentional felony has been committed.

2. The resulting wrong is the direct, natural, and logical consequence of the felonious act (Proximate Cause).

- **Proximate Cause Defined:** That cause which, in natural and continuous sequence, unbroken by any efficient intervening cause, produces the injury, and without which the result would not have occurred (*Bataclan v. Medina*, 102 Phil. 181).
- **Three Common Applications of Art. 4(1):**
 1. **Error in Personae (Mistake in the Identity of the Victim):** The offender intends to shoot A, but mistakenly shoots B, believing B to be A. (Governed by Art. 49 for penalty imposition).
 2. **Aberratio Ictus (Mistake in the Blow):** The offender aims at A, but due to poor aim or deflection, hits and kills B. (Produces a complex crime under Art. 48).
 3. **Praeter Intentionem (Injurious Result Exceeds the Intent):** The offender attacks the victim with moderate force, but the victim falls, hits his head on a concrete curb, and dies. (Appreciated as a mitigating circumstance under Art. 13, Par. 3).

2. Paragraph 2: Impossible Crimes

- **Rationale:** To punish the dangerous criminal propensity/tendency of the offender (Positivist / Italian School of Penology).
- **Requisites of an Impossible Crime:**
 1. The act performed would be an **offense against persons** (e.g., Parricide, Murder, Homicide) or **offense against property** (e.g., Theft, Estafa, Robbery).
 2. The act was done with **evil intent** (malice).
 3. Its accomplishment was **inherently impossible** OR the means employed were **inadequate or ineffectual**.
 4. The act performed does not constitute any other violation of the Revised Penal Code.
- **Two Kinds of Inherent Impossibility:**
 - **Legal Impossibility:** Offender shoots a corpse believing the person is alive; offender steals his own property believing it belongs to another.
 - **Physical Impossibility:** Offender puts his hand in the victim's pocket to pickpocket, but the pocket is completely empty; offender administers sugar believing it is arsenic.
- **Penalty for Impossible Crime:** *Arresto mayor* or a fine from 200 to 500 pesos (Art. 59 RPC).

ARTICLE 5: DUTY OF THE COURT

(Separation of Powers, Principle of Legality, Clemency Recommendations)

Text of the Law:

"Whenever a court has knowledge of any act which it may deem proper to repress and which is not punishable by law, it shall render the proper decision, dismissing the case or acquitting the accused, and shall report to the Chief Executive, through the Department of Justice, the reasons which induce the court to believe that said act

should be made the subject of penal legislation.

In the same way, the court shall submit to the Chief Executive, through the Department of Justice, such statement as may be deemed proper, without suspending the execution of the sentence, when a strict enforcement of the provisions of this Code would result in the imposition of a clearly excessive penalty, taking into consideration the degree of malice and the injury caused by the offense."

Detailed Legal Breakdown

1. Paragraph 1: Principle of Legality (*Nullum Crimen, Nulla Poena Sine Lege*):

- There is no crime when there is no law punishing it.
- Courts cannot create crimes through judicial interpretation. If an act is immoral or reprehensible but no statute penalizes it, the court **must dismiss the case and acquit the accused**.
- The court may then recommend penal legislation to the President / Congress.

2. Paragraph 2: Recommendation for Executive Clemency:

- When the law imposes a penalty that is excessively severe relative to the actual culpability, the court **must still impose the harsh legal penalty** (fidelity to the separation of powers and statutory text) but may concurrently recommend executive clemency (pardon or commutation of sentence) to the Chief Executive through the DOJ.

ARTICLE 6: STAGES OF EXECUTION

(Attempted, Frustrated, and Consummated Felonies)

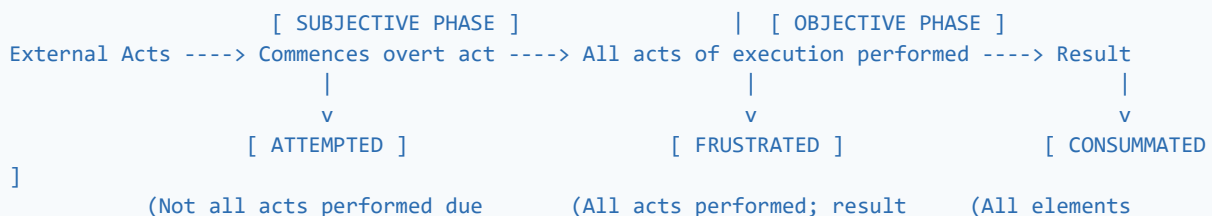
Text of the Law:

"Consummated felonies, as well as those which are frustrated and attempted, are punishable.

A felony is consummated when all the elements necessary for its execution and accomplishment are present; and it is frustrated when the offender performs all the acts of execution which would produce the felony as a consequence but which, nevertheless, do not produce it by reason of causes independent of the will of the perpetrator.

There is an attempt when the offender commences the commission of a felony directly by overt acts, and does not perform all the acts of execution which should produce the felony by reason of some cause or accident other than his own spontaneous desistance."

Comparative Matrix of the Stages of Execution



present; achieved)	to extraneous cause; NO spontaneous desistance)	not produced due to causes independent of the will)	felony fully
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Detailed Legal Elements

1. Attempted Felony

- **Elements:**
 1. The offender commences the commission of the felony directly by **overt acts**.
 2. The offender does **not perform all the acts of execution** which should produce the felony.
 3. The non-performance of all acts is due to **some cause or accident other than his own spontaneous desistance**.
- **Overt Act:** An external physical act that has direct and logical connection with the intended crime (more than mere preparatory acts).
- **Spontaneous Desistance:** If the actor voluntarily stops before completing all acts of execution out of genuine change of heart, he incurs **no liability for the attempted felony**, unless the acts already performed constitute another independent crime.

2. Frustrated Felony

- **Elements:**
 1. The offender performs **all the acts of execution** which should produce the felony as a consequence.
 2. The felony is **not produced / does not result**.
 3. The non-production of the result is due to **causes independent of the will of the perpetrator** (e.g., timely medical intervention saving a stabbed victim).

3. Consummated Felony

- **Element:** All the elements necessary for its execution and accomplishment are present (e.g., the victim died in homicide; the personal property was taken into the offender's control and possession in theft).

4. Crimes that Do Not Admit of Frustrated/Attempted Stages

- **Formal Crimes:** Consummated in a single moment (e.g., Slander, Perjury).
- **Crimes of Mere Possession:** (e.g., Illegal Possession of Firearms).
- **Crimes Committed by Omission:** (e.g., Failure of an accountable officer to render accounts).
- **Purely Culpable Felonies (*Culpa*):** Because there is no intent, one cannot "attempt" or "frustrate" a negligence offense.
- **Theft:** The Supreme Court in *Valenzuela v. People* (G.R. No. 160188, June 21, 2007) ruled that **there is no frustrated theft** in Philippine law; once the taking is complete (the unlawful taking or *apoderamiento* is accomplished), theft is consummated.

ARTICLE 7: PUNISHABILITY OF LIGHT FELONIES

Text of the Law:

"Light felonies are punishable only when they have been consummated, with the exception of those committed against persons or property."

Detailed Legal Breakdown

- 1. Definition of Light Felonies:** Infractions of law for the commission of which the penalty of *arresto menor* (1 day to 30 days imprisonment) or a fine not exceeding 40,000 pesos (as amended by RA 10951) is provided (Art. 9, Par. 3).
- 2. General Rule:** Light felonies are punishable **only when consummated**.
 - Rationale:* The harm caused to society by an attempted or frustrated light felony is so minimal that the State does not expend judicial and prosecutorial resources punishing it (*de minimis non curat lex*).
- 3. Exception:** Light felonies committed against **persons** (e.g., slight physical injuries) or **property** (e.g., theft of minimal value under Art. 309, Alteration of boundary marks under Art. 313) are punishable **even if attempted or frustrated**.
 - Rationale:* Crimes against persons and property demonstrate a moral depravity or threat to public safety that warrants state intervention even at the inchoate stage.

ARTICLE 8: CONSPIRACY AND PROPOSAL TO COMMIT FELONY

Text of the Law:

"Conspiracy and proposal to commit felony are punishable only in the cases in which the law specially provides a penalty therefor."

A conspiracy exists when two or more persons come to an agreement concerning the commission of a felony and decide to commit it.

There is proposal when the person who has decided to commit a felony proposes its execution to some other person or persons."

Detailed Legal Breakdown

1. Two Distinct Concepts of Conspiracy

CONSPIRACY IN CRIMINAL LAW

[CONSPIRACY AS A STANDALONE CRIME]
OF INCURRING LIABILITY]

- Punishable ONLY when expressly commit any ordinary crime specified by statute (Murder, Kidnapping).
- Examples:
 - Conspiracy to commit Treason (Art. 115) is the act of all."
 - Conspiracy to commit Rebellion (Art. 136) liable as co-principals
 - Conspiracy to commit Coup d'état (Art. 136) extent of their individual
 - Conspiracy to commit Sedition (Art. 141) participation.
 - Conspiracy under Anti-Terrorism Act

[CONSPIRACY AS A MANNER

- An agreement to (e.g., Robbery,
- NOT charged as
- Rule: "The act of one
- All conspirators are regardless of the physical

2. Elements of Conspiracy

1. Two or more persons come to an **agreement**.
 2. The agreement concerns the **commission of a felony**.
 3. The participants **decide to commit it**.
- **Proof of Conspiracy:** May be established by direct evidence or by circumstantial evidence showing a *common design, unity of purpose, and concerted action* (*People v. Carandang*).

3. Elements of Proposal

1. A person decides to commit a felony.
 2. He proposes its execution to some other person or persons.
- *Punishable only in specific cases:* Proposal to commit Treason (Art. 115), Proposal to commit Rebellion (Art. 136), Proposal to commit Coup d'état (Art. 136).
 - *Rule:* If the other person accepts the proposal and they decide to commit it, it transforms into **conspiracy**. If they actually execute the crime, both become co-conspirators in the consummated/attempted crime.

ARTICLE 9: CLASSIFICATION OF FELONIES ACCORDING TO GRAVITY

Text of the Law (as amended by R.A. No. 10951):

"Grave felonies are those to which the law attaches the capital punishment or penalties which in any of their periods are afflictive, in accordance with Article 25 of this Code.

Less grave felonies are those which the law punishes with penalties which in their maximum period are correctional, in accordance with the abovementioned article.

Light felonies are those infractions of law for the commission of which the penalty of arresto menor or a fine not exceeding 40,000 pesos, or both, is provided."

Classification Matrix

| Classification | Statutory Penalties (Art. 25 RPC) | Imprisonment Duration | Fine Threshold (RA 10951) | Prescription of Crime (Art. 90) |

| :--- | :--- | :--- | :--- | :--- |

| **Grave Felonies** | Capital (*Reclusion Perpetua* / Death); Afflictive penalties (*Reclusion Temporal*, *Prision Mayor*) | 6 years and 1 day to 40 years / Life | Exceeds ₱1,200,000 | 20 years (death/reclusion perpetua) / 15 years (afflictive) |

| **Less Grave Felonies** | Correctional penalties (*Prision Correccional*, *Arresto Mayor*, *Destierro*, Suspension) | 1 month and 1 day to 6 years | ₱40,000 to ₱1,200,000 | 10 years / 5 years |

| **Light Felonies** | *Arresto Menor* | 1 day to 30 days | Up to ₱40,000 | 2 months (60 days) |

- **Significance of Classification:**
 - Determines rules on complex crimes (Art. 48).
 - Determines prescription of crimes and prescription of penalties (Arts. 90, 92).
 - Determines liability of accessories (Art. 19 - accessories not liable for light felonies).
 - Determines applicability of preventive imprisonment deductions.

ARTICLE 10: OFFENSES NOT SUBJECT TO THE CODE (SPECIAL PENAL LAWS)

Text of the Law:

"Offenses which are or in the future may be punishable under special laws are not subject to the provisions of this Code. This Code shall be supplementary to such laws, unless the latter should specially provide the contrary."

Detailed Legal Breakdown

1. Two Key Clauses of Article 10

1. First Clause (General Rule): Special Penal Laws (SPLs) are governed primarily by their own specific statutory provisions, definitions, and penalties, rather than Book I and Book II of the RPC.

2. Second Clause (Principle of Supplementary Application): The provisions of the Revised Penal Code (especially Book I on General Principles, modifying circumstances, civil liability, etc.) apply **suppletorily** to Special Penal Laws, UNLESS:

- The special law expressly prohibits suppletory application; OR
- The special law provides a complete, self-contained system of penalties and definitions that are incompatible with the RPC's nomenclature and rules.

2. Suppletory Application Guidelines established by Supreme Court Jurisprudence

- **When RPC Applies Suppletorily:**
 - Rules on Civil Liability (Arts. 100-113) apply to SPLs (*People v. Rodriguez*).
 - Principle of Conspiracy (Art. 8) applies to SPLs (*People v. Simon*).
 - Principles on Accomplices and Accessories apply unless the special law defines all participants as principals.
- **When RPC Does NOT Apply Suppletorily:**
 - Modifying circumstances (Mitigating and Aggravating, Arts. 13 & 14) do NOT apply when the special law imposes a single, indivisible penalty or special penalty range not patterned after RPC nomenclature (*People v. Ramos*).
 - Stages of execution (Attempted/Frustrated) do NOT apply when the special law punishes mere possession or mere act of doing the prohibited conduct.

End of Articles 1 to 10 Study Guide.